

Calendar Line 6

Case Name: *Leonel F. Veliz Gutierrez v. April Fitz*

Case No.: 24CV435382

This is a motion by plaintiff Leonel Veliz Gutierrez for requests for admissions (“RFAs”) to be deemed admitted, based on defendant April Fitz’s failure to provide timely responses. Rather than file a timely response to the motion, Fitz has now filed a competing “motion for relief from waiver of admissions,” dated February 13, 2025, which is three days after the deadline to have opposed Veliz Gutierrez’s motion. In her motion for relief, Fitz states that she has now served responses to the RFAs. She requests relief from any waiver based on “inadvertence, mistake, or excusable neglect.”

Both Veliz Gutierrez and Fitz are representing themselves in this case.

Because it appears that Fitz has provided RFA responses before the date of hearing on Veliz Gutierrez’s motion, the court has no discretion but to deny the motion. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776-778; see also Code Civ. Proc., § 2033.280, subd. (c).) At the same time, section 2033.280, subdivision (c), makes it clear that imposition of a monetary sanction against the late-responding party is “mandatory.” Here, Veliz Gutierrez has requested a monetary sanction of \$14.41, representing the costs of having had to file his discovery motion. The court finds this amount to be reasonable and orders Fitz to pay this amount to Veliz Gutierrez within 15 days of this order. The purpose of discovery sanctions is compensatory, not punitive.

The motion is DENIED; the request for monetary sanctions is GRANTED. Because this order renders Fitz’s competing motion for relief from waiver moot, the court takes that motion (currently calendared for June 24, 2025) OFF CALENDAR.

It is so ordered.

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